

the petition of either party ; and, in the meantime, to issue any injunction, or make any order, that the safety and well-being of any such children may require.

1843—(14)

Sec. 1.

Pregnancy of woman before or at time of marriage, without knowledge of husband, good cause for divorce.

§ 22. In all marriages which have, or may hereafter take place, if it shall be made to appear to the satisfaction of the court to which application may be made for divorce, by the husband, that the wife previous to, or at the time of marriage, was pregnant, and that her husband had no agency in, nor was, at the time of marriage, cognizant of such pregnancy, it shall be adjudged sufficient cause for divorce from the bonds of matrimony.

DOWER.

1806—(1)

Sec. 11.

Widow may waive provision by will, and claim her dower.

Ib. Sec. 17.

Widow's dower, when the estate is insolvent.

§ 1. THE widow may, in all cases, waive the provision made for her in the will of her deceased husband, and claim her dower, which shall be assigned her accordingly ; in which case she shall receive no part of such provision, unless it appears plainly by the will, that the testator intended it in addition to her dower.

§ 2. When the estate of any testator or intestate shall be represented insolvent, and shall not be sufficient, both real and personal, to pay the just debts, the widow of such testator or intestate shall, though there be no children, or descendants to them, of such testator or intestate, be endowed with one-third only of the lands, tenements, and hereditaments of her deceased husband, any thing in this act to the contrary notwithstanding.^a

a See "Descents," § 2.

1812—(14)

Sec. 1.

How the widow shall be endowed when the husband dies intestate, or she dissents to his will.

§ 3. When any person shall die intestate, or shall make his last will and testament, and not therein make any express provision for his wife, by giving and devising unto her such part or parcel of his real and personal estate, as shall be fully satisfactory to her, such widow may signify her dissent thereto, in the circuit or county court in the county wherein she resides, at any time within one year after the probate of such will, and then and in that case she shall be entitled to dower in the following manner, to wit : one-third part of all the lands, tenements, and hereditaments, of which her husband died seized and possessed, or had before conveyed, whereof said widow had not relinquished her right of dower, as heretofore provided for by law, which third part shall be and inure to her proper use, benefit, and behoof, in and during the term of her natural life ; in which said third-part shall be comprehended the dwelling-house, in which her husband shall have been accustomed most generally to dwell next before his death, together with the offices, out-houses, buildings, and other improvements thereunto belonging, or appertaining : *Provided*, That if it should appear to the judge of the court to whom application is made, that the whole of said dwelling-house, out-houses, buildings, and other improvements thereunto appertaining, cannot be applied to the use of the widow, without manifest injustice to the children, or other heirs, then, and in that case, such widow shall be entitled to such part only as the court may deem reasonable and just.¹

¹ When the deceased husband has left *no lineal descendants*, the widow is to be endowed with one-half of his real estate.—See "Descents,"—§ 2,—unless his estate be insolvent as above,—§ 2.